

9:00 AM

Line 2

23-CIV-04827 EMILY BRADLEY VS. FREDERICK WATSON, MD, ET AL

EMILY BRADLEY
FREDERICK WATSON

DONNA ETEMADI
BARRY C. MARSH

Plaintiff's Motion to Compel Further Responses to Defendant Mills Peninsula's Responses to Plaintiff's First Set of Special Interrogatories

TENTATIVE RULING:

Plaintiff Emily Bradley's Motion to Compel Further Responses to Defendant Mills Peninsula's Responses to Plaintiff's First Set of Special Interrogatories is GRANTED.

Procedural Requirements

"A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc. section 2030.300 subd.(b)(1).) That declaration must "state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc. section 2016.040 subd. (a).)

Here, Plaintiff's counsel's supporting declaration discusses meet and confer efforts by written correspondence, but not in person, by telephone, or videoconference. (Etemadi Decl., ¶¶7-9.) Meet and confer requirements are therefore minimal. However, Defendant largely does not raise this as a significant issue in its opposition. Therefore the Court finds the meet and confer requirements sufficient.

Motion to Compel Further Responses

A party that has propounded written interrogatories may move for an order compelling a further response if the propounding party deems that an answer to a particular interrogatory is evasive or incomplete or that objection to an interrogatory is without merit or too general pursuant to Cal. Code of Civ. Proc. Section 2030.300(a).

Here, Plaintiff served Plaintiff's Request for Special Interrogatories ("SI"), Set One on Defendant Mills Peninsula on October 16, 2025. (Etemadi Decl., ¶¶3-4, Exh. D.) Defendant Mills Peninsula served a response on December 2, 2025. (*Id.*, at ¶¶5-6, Exh. E.) Plaintiff's discovery requests at issue here are Special Interrogatories, Set One, No.'s 6 and 7:

SPECIAL INTERROGATORY NO. 6:

DESCRIBE ALL policies and procedures in place at MILLS PENINSULA MEDICAL CENTER from May 2020 until August 2022 RELATED TO OR REGARDING the practice of early discharge due to the COVID-19 pandemic.

...

SPECIAL INTERROGATORY NO. 7:

IDENTIFY ALL DOCUMENT(S) RELATED TO OR REGARDING policies and procedures in place at MILLS PENINSULA MEDICAL CENTER from May 2020 until August 2022 RELATED TO OR REGARDING the practice of early discharge due to the COVID-19 pandemic.

(Separate Statement ISO Motion, at p. 2:2-5, 3:9-13.)

However, Plaintiff's moving papers for "PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO DEFENDANT MILLS PENINSULA'S RESPONSES TO PLAINTIFF'S FIRST SET OF SPECIAL INTERROGATORIES," filed February 4, 2026, presents argument substantively focused on a request for production of documents. Despite that, Plaintiff's Separate Statement in support of this Motion is specifically for SI No.'s 6-7, and Defendant's opposition is focused on same.

The core of the dispute is whether Defendant's policies and procedures relating to the practice of early discharge due to the COVID-19 pandemic are relevant to the dispute or whether the request for those policies is reasonably calculated to lead to the discovery of admissible evidence. Plaintiff argues that the policies are relevant because they relate to the early discharge of the decedent in the action and the reasons for that discharge, pointing to the deposition of Dr. Shital Aggarwal. (See Etemadi Decl., ¶¶10-11, Exh. F.)

Defendant's core objection in its Response to SI No.'s 6 and 7, are that the information sought is not relevant. See, Def.' Separate Statement, generally. Defendant points to Dr. Aggarwal's testimony as establishing that the timing of the discharge was "based on based on clinical circumstances. This patient came in with demand, so - - - demand ischemia, so patient was admitted as an observation. Typically, patients are discharged 24, 48 hours." (Opp. at p. 8:15-17, citing Aggarwal Depo. At p. 31:16-19.)

In contrast, Plaintiff has argued that as Michael Bradley was discharged one day early during the Covid-19 pandemic, it is relevant whether or not he was discharged early due to Covid-19 protocols. See, Etemadi Decl., Exh. A for SI No.'s 6. Defendant then agreed during the meet and confer to this: "Defendant will supplement responses to Special Interrogatories No.'s 1, 6 & 7." Etemadi Decl., Exh. B, Feb. 1, 2026 letter from Attorney Racic (emphasis added). Neither

side appears to raise this point in their argument.

At an Informal Discovery Conference (“IDC”) held on May 18, 2026, it appears these and other discovery requests were discussed. Relevantly, the Civil Commissioner correctly noted:

“As for MPMC policies regarding early discharge during the COVID-19 pandemic, the Commissioner thinks the existence, implementation, and execution of such policies, if they exist, would be probative here such that Defendants should provide further responses to Special Interrogatories regarding same.”

Minute Order, 05/18/2026.

Thus despite actually agreeing in writing to amend but then not amending, and despite the Civil Commissioner’s express recommendation, Defendant still has not amended on SI No.’s 6 and 7. This is inexplicable, and the deposition testimony of Dr. Aggarwal is also not dispositive. The relevant testimony from Dr. Aggarwal is as follows:

Q. No. It’s okay.

And then the expected date of discharge that you listed as May 26, 2022, Mr. Bradley was ultimately discharged on May 25th 2022. Do you recall that?

A. No.

Q. Do you know in circumstances like this with the expected date of discharge, how is that date usually decided?

A. It’s based on clinical circumstances. This patient came in with demand, so – demand ischemia, so patient was admitted as an observation. Typically, patients are discharged 24,48 hours.

Etemadi Decl., Exh. F, Depo. Of Dr. Aggarwal, pg, 31.

All this testimony establishes, is first, that Dr. Aggarwal does not even recall the discharge listed date or actual discharge date. Second, she was then asked, “how is that date usually decided.” She was not asked how it was decided specifically in relation to Michael Bradley. Third, she then describes a typical or usual practice, that discharges are based on clinical circumstances. Unfortunately, there were no follow-up questions on this point. There was no question as to why Michael Bradley was specifically discharged a day early. There are also no questions at all, throughout the transcript, regarding the hospital’s Covid-19 early discharge policy, if any; thus no questions at all whether or not such a policy affected Michael Bradley’s discharge. Finally, Dr. Aggarwal’s deposition was apparently limited to only one hour, with a good portion of the questions by Mr. Marsh representing this defendant. Ms. Etemadi was then allowed a shorter period of time, and near the end she was interrupted at least three times by Mr. Grant (representing Dr. Aggarwal). When the transcript is read as a whole, this can be interpreted as limiting plaintiff’s ability to ask pertinent questions.

In any event, SI No.'s 6 and 7 passes the relevancy test, and defendant does not meet its burden to demonstrate that the questions are clearly irrelevant to support its initial objections. The motion is thus GRANTED. Defendant to serve code-compliant substantive responses answering the call of these questions within 21 days of service of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 3

25-CIV-07605 JEEWON PARK BY AND THROUGH HIS CONSERVATOR HAE SOO
PARK VS. ANTHONY DIODATI, ET AL

JEEWON PARK BY AND THROUGH HIS CONSERVATOR MARC LIBARLE
HAE SOO PARK
ANTHONY DIODATI

ROBYN H. SHIELDS

Defendant Primrose Gardens, LLC's Demurrer to Plaintiff's First Amended Complaint

TENTATIVE RULING:

The Demurrer of Defendant Primrose Gardens, LLC ("Defendant") to the First Amended Complaint ("FAC") by Jeewon Park, by and through his conservator, Hae Soo Park, ("Plaintiff") is **OVERRULED** as to the statute of limitations argument and **SUSTAINED WITH LEAVE TO AMEND** as to failure to allege facts sufficient to support a cause of action, as set forth below.

FACTUAL BACKGROUND

On November 9, 2018, Plaintiff entered into a residential lease agreement with Defendant Primrose Gardens, LLC ("Primrose"). (FAC, ¶ 7.) Before the time of entering into the lease, it was disclosed to Defendants that Plaintiff was a person with special needs and would require the presence of a caregiver at all times. (*Ibid.*) At some point during the tenancy, Defendant Diodati unilaterally relocated Plaintiff to a more isolated unit on the premises due to noise complaints allegedly stemming from Plaintiff's disability-related behaviors. (*Id.*, at ¶¶ 9, 20.)

On May 15, 2023, while Plaintiff's caregiver stepped out briefly, Defendant Diodati entered Plaintiff's unit without permission. (*Id.*, ¶ 10.) Defendant Diodati knew that Plaintiff Park was making noise due to his disability. (*Id.*, at ¶ 52.) During the unauthorized entry, Diodati allegedly assaulted and battered Plaintiff, verbally berated him, and caused Plaintiff severe emotional and physical harm. (*Id.*, ¶ 10.) Defendant Diodati continuously shouted at Plaintiff while trespassing in Plaintiff's apartment. (*Id.*, ¶ 58.) Defendant Diodati also grabbed Plaintiff with his left hand by the throat, pushed Plaintiff against the hallway wall, and held him there. (*Id.*, at ¶ 64.) After opening the door to Plaintiff's apartment, Defendant Diodati again pushed Plaintiff back into his apartment and closed the door. (*Ibid.*)

LEGAL STANDARD

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law.
